

26NWCV02685 26NWCV02685

County: los-angeles

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Case Number: 26NWCV02685 Hearing Date: September 23, 2026 Dept: C

ANSIBOY vs LOPEZ

CASE NO.: 26NWCV02685

HEARING: 9/23/26 @ 9:30 AM

#11

TENTATIVE RULING

Defendant

Fabiola Lopez's Unopposed Demurrer is OVERRULED. Defendant to answer within five days.

Moving Party to give NOTICE.

Pro Per Defendant Fabiola Lopez (Defendant) generally demurs to Pro Per Plaintiff Dennis Ansiboy's Complaint.

Background

This

is an unlawful detainer action. Plaintiff alleges that Defendant entered into a month to month tenancy on or about September 1, 2025. Plaintiff further alleges that Defendant failed to pay rent in the monthly amount of \$6,999.00. Plaintiff alleges he served a Three-Day Notice to Pay Rent or Quit on multiple dates: 07/28/26 & 07/21/26, 07/22/26 & 07/15/26. (Complaint, p. 2–4.)

Legal

Standard

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show¿in what manner¿plaintiff can amend the complaint, and¿how¿that amendment will change the legal effect of the pleading. ¿(Id.)

Request for Judicial

Notice

Defendant’s Request for

Judicial Notice is GRANTED.

Meet and Confer

Under Code Civ. Proc.,

430.41, subd. (d)(2), the meet-and-confer requirement does not apply to unlawful-detainer proceedings.

Discussion

I.

DEFENDANT'S

DEADLINE TO RESPOND TO THE PLEADINGS

Generally, unless otherwise ordered by the court, the tenant has only five days after the summons is served to demur. (See Code Civ. Proc., §§ 1167, 1170.) Default may be entered if no responsive pleading is filed “within the time specified in the summons, or within further time as may be allowed.” (CCP § 585(a) (emphasis added)).

However, where plaintiff has not yet applied for entry of default, plaintiff in effect, has allowed the defendant further time to plead. (*Fiorentino v. City of Fresno* (2007) 150 Cal.App.4th 596, 605.) But a pleading or motion filed after expiration of the time to respond is subject to a motion to strike. Although discretionary with the court, if the motion is granted, the defendant's default can then be entered. (*Buck v. Morrossis* (1952) 114 CA2d 461, 464-465.)

Here, Plaintiff filed his Complaint and served Defendant on August 10, 2026. Defendant filed her Demurrer to the Complaint on August 31, 2026. Although the demurrer did not meet the five-day deadline, Plaintiff had not applied for entry of default when Defendant demurred. Plaintiff applied for entry of default as to All Unknown Occupants on September 10, 2026. Thus, Plaintiff allowed the defendant further time to plead. (*Fiorentino v. City of Fresno* (2007) 150 Cal.App.4th 596, 605.) Plaintiff failed to move to strike Defendant's Demurrer. Therefore, the Court shall consider Defendant's Demurrer on the merits.

II.

FACTS

SUFFICIENT TO STATE A CAUSE OF ACTION

A.

Standing

A cause of action for unlawful detainer must “set forth the facts on which the plaintiff seeks to recover” (*Stancil v.*

Superior Court (2021) 11 Cal.5th 381, 395,; accord, Code Civ. Proc., § 1166, subd. (a)(2)), including the allegation of ownership or some other enforceable right to possession (Staudigl v. Harper (1946) 76 Cal.App.2d 439.) A failure-to-pay unlawful detainer action may be brought by “the landlord, or the successor in estate of the landlord, ...” (Code Civ. Proc., § 1161, subd. (2).) Except as otherwise authorized by statute, every action must be prosecuted in the name of the real party in interest. (Code Civ. Proc., § 367.) The real party in interest is typically a party who has title to the cause of action, but “in many instances ... one who is not the owner of the property nonetheless may be the real party in interest if that person's interests in the property are injured or damaged.” (Vaughn v. Dame Construction Co. (1990) 223 Cal.App.3d 144, 148.)

Defendant argues that the Complaint identifies Plaintiff as “Dennis Ansiboy,” whereas the recorded Grant Deed concerning the Subject Property reflects a conveyance by Dennis Ansiboy and Esmeralda Ansiboy to the “Dennis and Esmeralda Ansiboy Revocable Living Trust.” (RJN, Ex. A.) The Court finds that at the pleadings stage Plaintiff’s allegations suffice. Plaintiff alleges his interest in the premises is “as owner.” (Complaint, ¶4.) Plaintiff’s allegations regarding his status as landlord are supported by the lease agreement, which he signed in his individual capacity. (Complaint, Ex. 1.) Defendant’s argument concerning the Grant Deed refers to matters outside of the four corners of the Complaint and cannot be considered by the Court when ruling on a demurrer.

Accordingly, the demurrer as to Plaintiff’s standing is OVERRULED.

B.

Unlawful

Detainer Cause of Action

The basic elements of unlawful detainer for nonpayment of rent are (1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written three-day notice; and (5) the default continues after the three-day notice period has elapsed. (Cal. Civ. Proc. Code § 1161(2).)

Because of the summary character of unlawful

detainer proceedings, the Unlawful Detainer statutes are strictly interpreted and applied. Landlords who fail to follow the statutory prerequisites are likely to find their cases dismissed and may be deemed to have forfeited the preexisting right to evict. (Group XIII Properties LP v. Stockman (2022) 85 Cal.App.5th Supp. 1, disapproved of on other grounds by 360 So Reeves, LLC v. Dutton (2026) 119 Cal.App.5th Supp. 1.)

Defendant argues the Complaint is uncertain and internally inconsistent because it alleges Defendant occupied the premises pursuant to a month-to-month tenancy whereas the Lease provides for a fixed-term tenancy beginning September 1, 2025 and ending October 31, 2028. (Complaint, ¶6e, Ex. 1, Residential Lease Agreement, para. 1.4.) To the extent there is any ambiguity in the tenancy, the express terms of the Lease are unambiguous and controlling.

Defendant argues there is uncertainty regarding which three-day notice forms the basis for this action. Plaintiff attaches three separate three-day notices to the Complaint in Exhibit 2: 1) "Three Day Notice to Quit Premises for Failure to Perform Covenants" served July 22, 2026; 2) "Three Day Notice to Pay or Quit" served on July 15, 2026, and 3) "California Three (3) Day Notice to Perform Covenants or Quit" served on July 15, 2026. Defendant cites to no authority limiting Plaintiff to only one three-day notice.

The notice to pay or quit and the notices to perform or quit relate to separate and distinct grounds for eviction, and each ground forms a basis for this action.

Defendant argues the manner of service as alleged in the Complaint is confusing, and the proofs of service do not reflect an authorized method of service pursuant to CCP § 1162. The Complaint states notice was served: "By posting a copy on the premises on (date):7/22/26 & 7/15/26 ... AND giving a copy to a person found residing at the premises and mailing a copy to the defendant at the premises on (date) 7/22/26 & 7/15/26. (Complaint, ¶10a(3). However, the Complaint also states: "because no person of suitable age or discretion can be found there." (Ibid.) To the extent there is any ambiguity in the Complaint, the proofs of service contained in Exhibit 3 of the Complaint clearly state the notices were served by "posting and mail" on July 15, 2026 and July 22, 2026.

Finally, Defendant argues the Three-Day Notice to Perform Covenants or Quit is overbroad and uncertain. The Court has reviewed the Three-Day Notice

to Perform Covenants or Quit served on July 15, 2026, and finds that it sufficiently gives notice to Defendant of the alleged violations of the lease. These include failure to provide and maintain renter's insurance, failure to provide the landlord with lawful access to the property, failure to cooperate with all repair and maintenance work, etc. Moreover, the notice provides a detailed chronology of events from October 17, 2025 through March 16, 2026.

Accordingly, the demurrer is OVERRULED. Defendant shall answer within five days.